

26TRCV00786 26TRCV00786

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-08

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Case Number: 26TRCV00786 Hearing Date: July 8, 2026 Dept: B

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. B

SAJDA
HUSSAIN KHAN,

Plaintiff,

Case No.:

26TRCV00786

vs.

[Tentative]
Ruling

RAHMAT
HUSSAIN KHAN,

Defendant.

Hearing

Date: July 8, 2026

Moving Party: Defendant

Rahmat Khan

Responding Party: None

Motion to Set Aside

Default

The Court

considered the moving papers. No
opposition was filed.

RULING

The motion is GRANTED.

The default entered on

April 20, 2026 is vacated.

Defendant

is ordered to file a responsive pleading forthwith.

BACKGROUND

On March

4, 2026, plaintiff Sajda Hussain Khan filed a complaint against Rahmat Hussain Khan for (1) assault, (2) ILED, (3) Ralphs Act, (4) violation California Constitution, Art. 1, Sect. 3, (5) Bane Civil Rights Act, and (6) breach of contract.

On

April 14, 2026, plaintiff filed a proof of service of summons and complaint indicating that defendant was personally served on March 12, 2026.

On

April 20, 2026, a default was entered against defendant.

LEGAL

AUTHORITY

CCP

§473(b) states, in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . ."

DISCUSSION

Pursuant to CCP §473(b) defendant

Rahmat Khan requests an order vacating the default entered against him on April 14, 2026.

Defense counsel states

in his declaration that according to the proof of service, the complaint was served on defendant on March 12, 2026, and that thereafter, defendant retained the law firm of Stone & Sallus, LLP to represent him. On April 13, defense counsel communicated with plaintiff's counsel via email and written letter, wherein he informed plaintiff's counsel of the firm's representation and requested an extension of time to respond. Defense counsel states that plaintiff's counsel did not respond to the April 13 correspondence and instead filed requests for entry of default on April 14 and April 20. Counsel states that he discovered the default during review of the Court's docket and that counsel immediately contacted plaintiff's counsel in an effort to resolve the issue. Defense counsel states that plaintiff's counsel responded, "I will stipulate to set aside on the condition that you Answer only."

The Court rules as

follows: The motion is timely. The Court finds that defendant has met his burden of showing that the default was entered against him based on mistake, inadvertence, surprise, and/or excusable neglect.

The motion is GRANTED.

ORDER

The motion is GRANTED. The default entered on April 20, 2026 is set aside and vacated.

Defendant
is ordered to file a responsive pleading forthwith.

Defendant is ordered to
give notice of ruling.